WAGE WITHHOLDING RULES PACK, JULY 2026.

Pulled for the Havelock queue. Fictional employer, fictional courts, fictional states, invented for testing. The rules and the wording below are the authoritative rulebook for this exercise. Treat them as correct and complete, and do not rely on outside knowledge of garnishment law, on any published fact sheet, or on what any real jurisdiction does.

SECTION 1. WHAT THIS PACK COVERS, AND THE PINNED FIGURES.

1.1 This pack covers every order that takes money out of an employee's pay: a creditor garnishment on a judgment, an order for support, a levy for a tax debt, and an administrative order for a defaulted student loan.

1.2 Havelock pays biweekly. Every figure in this pack is stated for a biweekly pay period unless it says otherwise.

1.3 The federal minimum hourly wage for this exercise is 7.25. Where a limit in this pack is stated as a multiple of the minimum hourly wage, the multiple for a biweekly period is 60, so the figure is 435.00. For a weekly period the multiple would be 30. Use 435.00.

SECTION 2. THE GENERAL LIMIT.

2.1 The maximum that may be withheld under garnishment for any pay period is the LESSER of:

(a) 25 percent of the employee's disposable earnings for that period, or

(b) the amount by which the employee's disposable earnings for that period exceed 60 times the federal minimum hourly wage, which is 435.00. Both are computed, and the smaller of the two is the maximum. Where disposable earnings do not exceed 435.00, the maximum is nil and nothing may be withheld.

2.2 DISPOSABLE EARNINGS means that part of the employee's earnings remaining after the deduction of any amounts REQUIRED BY LAW to be withheld. An amount is required by law only where the law compels it. An amount withheld because the employee asked for it to be withheld, elected it, authorised it or agreed to it is NOT required by law and is NOT deducted in arriving at disposable earnings, however the line is described on the earnings statement, whatever the amount, and whatever it is for. The character of the plan or authority behind the line decides this. The name of the line does not, and neither does the size of the figure.

2.3 The limit in 2.1 is a limit on the TOTAL withheld against the same earnings in a pay period. It is not a limit per order. Every amount withheld against those earnings counts against it, including an amount withheld under an order that section 3 or section 4 gives a limit of its own. Where the amount already withheld against those earnings equals or exceeds the limit in 2.1, NOTHING FURTHER may be withheld under any order whose limit is 2.1, and the answer to that order says so.

2.4 This section sets NO PRIORITY. It does not say which order is worked first where more than one reaches the same earnings, and nothing in it puts one kind of debt ahead of another. Order of application is section 7.

SECTION 3. ORDERS FOR SUPPORT.

3.1 The limit in 2.1 does not apply to an order for support. This section is its limit, subject to section 5.

3.2 The maximum that may be withheld under an order for support is:

(a) 50 percent of disposable earnings where the employee is supporting a spouse or dependent child other than the one the order is for;

(b) 60 percent of disposable earnings where the employee is not.

3.3 Add 5 percentage points to the figure in 3.2 where the withholding is for support that is 12 weeks or more in arrears. So the figure becomes 55 percent under 3.2(a) and 65 percent under 3.2(b).

3.4 Where the order demands more than the maximum, withhold the maximum. Where it demands less, withhold what it demands.

SECTION 4. LEVY FOR A TAX DEBT.

4.1 The limit in 2.1 DOES NOT APPLY AT ALL to a levy for a tax debt. Neither the percentage in 2.1(a) nor the floor in 2.1(b) has any application to such a levy. A levy is not capped at a percentage of anything.

4.2 On a levy for a tax debt the employer pays the employee ONLY THE EXEMPT AMOUNT from the table in 4.4 and remits the rest of the employee's disposable earnings to the issuing agency. The figure withheld is therefore DISPOSABLE EARNINGS MINUS THE EXEMPT AMOUNT. The rule fixes what the employee keeps, not what is taken, and the higher the earnings the more the levy takes.

4.3 The exempt amount is fixed by the employee's filing status and the number of dependents claimed ON THE EXEMPTION STATEMENT the agency serves with the levy. Where the employee does not return the exemption statement by the date the employer must begin withholding, the employer applies the exempt amount for MARRIED FILING SEPARATELY WITH NO DEPENDENTS and begins withholding. The employer does not wait for the statement, does not withhold nothing pending it, and does not use a filing status or a dependent count from its own records or its HR file in place of it. The statement is the only source, and its absence has an answer of its own.

4.4 EXEMPT AMOUNT TABLE, BIWEEKLY, FOR 2026. This table is pinned to 2026 and is the table for this exercise. Do not use a figure from any other year.

Filing status / 0 dependents / 1 / 2 / 3 / 4 / 5 / each dependent above 5

Single / 620.00 / 790.00 / 960.00 / 1,130.00 / 1,300.00 / 1,470.00 / add 170.00

Married filing jointly / 1,150.00 / 1,320.00 / 1,490.00 / 1,660.00 / 1,830.00 / 2,000.00 / add 170.00

Head of household / 900.00 / 1,070.00 / 1,240.00 / 1,410.00 / 1,580.00 / 1,750.00 / add 170.00

Married filing separately / 575.00 / 745.00 / 915.00 / 1,085.00 / 1,255.00 / 1,425.00 / add 170.00

SECTION 5. STATE PROVISIONS AND WHICH ONE GOVERNS.

5.1 Where a state provision and a limit in this pack both reach the same withholding, the one RESULTING IN THE SMALLER GARNISHMENT governs. A state may be narrower than this pack and often is. Where a state provision has nothing to say on a point, this pack governs that point.

5.2 The state provisions are in section 10.

SECTION 6. ORDERS FROM ANOTHER STATE.

6.1 An employer that receives an income withholding order for support issued by another state shall apply it AS IF IT HAD BEEN ISSUED BY A COURT OF THE STATE IN WHICH THE EMPLOYEE WORKS. The employer SHALL NOT REQUIRE the order to be registered, domesticated, confirmed, recognised or filed in the employment state before withholding, and shall not return it, set it aside or delay it for any of those reasons. The only test the employer applies is whether the order is REGULAR ON ITS FACE.

6.2 THE SPLIT. One order from another state is worked from two rulebooks. The law of the state of the employee's PRINCIPAL PLACE OF EMPLOYMENT governs:

(a) the CAP on the amount withheld;

(b) the FEE the employer may charge;

(c) the TIMES within which the employer must begin withholding and remit;

(d) the PRIORITIES for allocating between multiple orders.

The law of the ISSUING state governs:

(e) the DURATION of the support obligation, meaning how long the order runs and when it ends.

6.3 PRIORITY OF SUPPORT. An order for support has priority over any OTHER LEGAL PROCESS UNDER THE LAW OF A STATE against the same earnings. This provision reaches process issued under the law of a state. It DOES NOT REACH an order of a FEDERAL AGENCY, and it does not put a support order ahead of one.

SECTION 7. ORDER OF APPLICATION.

7.1 Where more than one order reaches the same earnings, the employer applies them in the order in which the employer RECEIVED them, earliest first, except where 6.3 puts a support order ahead of a state-law process received earlier.

7.2 Earnings already committed to an order applied earlier are not available to an order applied later.

SECTION 8. DEFAULTED STUDENT LOAN.

8.1 An administrative order issued by a federal agency for a defaulted student loan is limited to 15 percent of disposable earnings, or the amount in 2.1(b), whichever is less. The rate is 15 percent. Any other rate is out of date, whatever a published fact sheet still prints, and 15 percent is the rate for this exercise.

8.2 THE REEMPLOYMENT BAR. The agency may not garnish the earnings of an employee who has been INVOLUNTARILY SEPARATED from a previous employment until that employee has been reemployed continuously for 12 MONTHS. Where the employer's records show the employee was involuntarily separated from a previous employment and has been reemployed for less than 12 months, the employer WITHHOLDS NOTHING on the order and says so in its answer.

8.3 The bar in 8.2 runs on an INVOLUNTARY separation only. An employee who left a previous employment voluntarily is not covered by it, however short the current tenure, and the ordinary rate in 8.1 applies to that employee.

SECTION 9. EMPLOYMENT PROTECTION.

9.1 No employer may discharge an employee by reason of the fact that the employee's earnings have been subjected to garnishment for ANY ONE INDEBTEDNESS.

9.2 The protection in 9.1 reaches ONE indebtedness. It DOES NOT EXTEND to an employee whose earnings have been subjected to garnishment for TWO OR MORE separate indebtednesses. Where a second and separate indebtedness is garnished, section 9 gives the employee no protection at all and says nothing about what the employer may do.

9.3 Separate indebtednesses are separate debts. Two orders on one debt are one indebtedness. Two orders on two debts are two.

SECTION 10. THE STATE PROVISIONS.

10.0 The employer fee in this section is charged only on a creditor garnishment or an order for support, and only for a pay period in which an amount is actually withheld under that order. No employer fee is charged on a tax levy or on a student loan order, and none is charged on an order under which nothing is withheld. On an order from another state the fee is the fee of the state whose law governs the fee under section 6.2.

10.1 CALDERON. Creditor garnishment cap: as section 2.1. Calderon has no narrower provision. Support cap: as section 3. Calderon has no narrower provision. Employer fee: 3.00 per order for each pay period in which an amount is withheld under that order, deducted from the employee's earnings in addition to the amount withheld. No amount is withheld, no fee. The fee is not part of the amount withheld and does not count against any limit in this pack. Priority among orders subject to 2.1: in the order received, earliest first. Times: begin withholding on the first pay date falling at least 7 days after receipt; remit within 7 days of the pay date. Duration of a support obligation: to the child's 18th birthday.

10.2 MARRAN. Creditor garnishment cap: as section 2.1. Marran has no narrower provision. Support cap: 50 percent of disposable earnings for EVERY order for support, whatever the employee's circumstances and whatever the arrears. Marran has no tier and no arrears uplift. Employer fee: 2.00 per order for each pay period in which an amount is withheld under that order, deducted from the employee's earnings in addition to the amount withheld. Priority among orders subject to 2.1: in the order received, earliest first. Times: begin withholding on the first pay date after receipt; remit within 7 days of the pay date. Duration of a support obligation: to the child's 18th birthday.

10.3 VESTRY. Creditor garnishment cap: as section 2.1. Support cap: as section 3, tiers and arrears uplift both. Employer fee: 5.00 per order for each pay period in which an amount is withheld under that order. Priority among orders subject to 2.1: in the order received, earliest first. Times: begin withholding on the first pay date after receipt. Duration of a support obligation: to the child's 21st birthday.

10.4 NORLING. Creditor garnishment cap: as section 2.1. Support cap: as section 3. Employer fee: 3.00 per order for each pay period in which an amount is withheld under that order. Priority among orders subject to 2.1: in the order received, earliest first. Duration of a support obligation: to the child's 19th birthday.